



File No.: EXP202302803

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) on February 17, 2023, filed a complaint with the Spanish Agency for the Protection of Data. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that they are a neighbor of the respondent and that the respondent has installed a video surveillance camera on their property, at a height above the fence that limits the respondent's property, oriented outward, which, due to its location, height, and orientation, is capable of capturing images of areas outside the respondent's property, as well as areas belonging to the complainant's residence, without having authorization for this.

Images of the camera's location are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was returned as absent on March 28, 2023.

The forwarding was reiterated on April 12, 2023, and was collected on April 20, 2023, as evidenced by the acknowledgment of receipt in the file.

On April 21, 2023, a response letter from the respondent was received by this Agency, in which an image was provided showing that, in addition to capturing the entrance to their property, the entire path leading to the other properties, including that of the complainant, is captured. Furthermore, it is not evidenced that there is an informative sign displayed in a visible location, fulfilling the obligation to inform established in the GDPR.

THIRD: On May 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 21, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated:

“FIRST.- That the surveillance camera I have installed focuses on the entrance to my house and the path of my property, as this is private and is included in the property deed, and is also closed with a chain to prevent the passage of vehicles.

SECOND.- That the camera does not record anything from outside my plot, which can be verified with a visit to the site, even asking the Civil Guard who is aware of the situation.

THIRD.- That I have put up the sign warning of the security camera.”

SIXTH: On August 31, 2023, the instructor of the procedure decided to carry out the following evidence:

Request for collaboration from the GUARDIA CIVIL, POST P. OF ALHAMA (MURCIA), to inform the following upon their presence at the site:

- Presence of video surveillance cameras, taking photographs with date and time that certify the orientation, indicating through on-site recognition whether they are oriented towards private areas, as stated by the respondent, or towards the complainant's residence, as indicated in their complaint.

SEVENTH: On November 23, 2023, a report from the Guardia Civil (Murcia Command - Lorca Company) was received, which reflects the presence of a video surveillance camera system “although it is not detected that its focus is directly towards the interior of other private properties (...)

On the other hand, the existence of a second video surveillance camera is verified, which is placed in the exterior area of a garage or storage window, (...) This camera does not focus on private properties, only towards the path.”

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The informational sign regarding the placement of the video surveillance camera (...) is placed under the camera that is installed at the gate of your residence (...).

EIGHTH: On the date 30/11/23, a is issued in which it is considered that the system subject to the complaint complies with current legality, proposing the filing of the same, as no administrative infringement has been substantiated in the matter at hand.

From the actions taken in this procedure and the documentation in the file, the following have been substantiated:

PROVEN FACTS

FIRST: It is recorded, according to documentation submitted to the file, that the responding party has installed two fixed closed-circuit television surveillance cameras on their property, which, due to their orientation, would not be recording images outside the property of the responding party.

SECOND: It is recorded, according to documentation submitted to the file, that there is a sign placed in a visible location warning of the existence of the aforementioned video surveillance system, which meets all the requirements set forth in Article 22 of the LOPDGDD.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations regarding the initiation agreement

- The responding party alleges that the surveillance camera installed focuses on the entrance warehouse to their house and the path of their property, as this is private and is included in the property deed, and that it is also closed with a chain to prevent vehicle access.

In this regard, this Agency, after studying the report submitted by the Civil Guard, with all the evidence provided therein, concludes that, indeed, the cameras are not recording common or private areas of

the complaining party.

-The complaining party alleges that a sign has been installed warning that the area is under video surveillance.

In this regard, this Agency, after verifying the photographs submitted by the Civil Guard, observes that, indeed, there is a sign that warns that the area is under video surveillance, complying with the requirements set forth in Article 22 of the LOPDGDD.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')." Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing thereof.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to guarantee the purpose of security.

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That is to say, the cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

In this case, from the documentation provided in the file as a result of the evidence presented, it can be deduced that the responding party has not captured images that do not correspond to their own property.

IV

The installation of a video camera entails the unavoidable obligation to inform about its presence through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

Article 22, section 4 of LO 3/2018, of December 5, states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be understood to be fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."

In this case, from the documentation provided in the file, the existence of such an informative device is confirmed.

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After analyzing the allegations presented, and following the on-site verification of the system subject to the complaint by the State Security Forces and Corps, it can be concluded that the mere visualization of the same, given the proximity of the parcels, does not imply an infringement of the complainant's privacy, as the cameras are oriented towards the private area of the respondent, with an informative sign indicating that it is a area.

It is reminded that currently, property owners (parcels) can install video surveillance systems, although they are primarily responsible for ensuring that these comply at all times with current legislation, being crucial from the data protection perspective that the capture of images (data) is carried out outside the established legal margins; it is sufficient for them to have an informative sign in a visible area indicating that the area is being video-monitored.

Finally, it is recommended that the devices be preferably oriented towards private areas, avoiding intimidation with the same(s) towards neighboring properties and in a manner proportionate to their purpose, thus, as a guideline, avoiding capturing the entire width of the common transit path between the parties.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure as no administrative infringement has been established in the matter at hand.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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